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Case Number: 26SMCV00047 Hearing Date: July 17, 2026 Dept: M

CASE NAME: Essex Monarch Santa Monica Apartments L.P., v. DT Investments Inc., et al.

CASE NO.: 26SMCV00047

MOTION: Demurrer to the Cross-Complaint

HEARING DATE: 7/17/2026

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Plaintiff/Cross-Defendant Essex Monarch Santa Monica Apartments, L.P., demurs to Defendant/Cross-Complainant Fang Li’s Cross-Complaint.

Request
for Judicial Notice

The request for judicial notice is DENIED. Cross-Defendant seeks notice of the Lease attached to the underlying complaint only as hearsay evidence to dispute the pled allegations of the Cross-Complaint (“CC”). (See Richtek USA, Inc. v. uPI Semiconductor Corporation (2015) 242 Cal.App.4th 651, 660 [judicial notice cannot turn the hearing on demurrer into a contested evidentiary hearing].)

Discussion

Essex argues that both stated causes sounds in contract, but Li lacks standing as she is not a party to the subject lease agreement. Essex asserts that Li is merely a guarantor of the Lease. Generally, a guarantor would not have standing to personally assert claims for breach of a contract to which the guarantor is not a party. (Stevenson v. Oceanic Bank (1990) 223 Cal.App.3d 306, 315.)

Strictly speaking, the lack of standing is not apparent on the face of the CC. The CC alleges on May 31, 2022, Li and her company DT Investments Inc. entered into a written agreement for the lease of a commercial property space with Essex. (CC ¶ 11.) Taking such an allegation as true, Li is a direct party to the lease. The Court would have been inclined to require Li attach the subject agreement to an

amended cross-complaint (which would likely reveal the standing issue). (See McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489 [to allege a breach of a written contract, the party must establish its terms “set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect”].) That said, Li concedes in opposition that she is a guarantor. Li claims that she was assigned the tenant's contractual rights relating to the construction allowance and damages resulting from Plaintiff's breaches. However, the CC does not allege these facts. Li must allege facts supporting the assignment and attach the subject contract in any amended pleading. (See Emerald Bay Community Assn. v. Golden Eagle Ins. Corp., (2005) 130 Cal.App.4th 1078, 1091 [the absence of an assignment allegation did not amount to a mere technicality].)

Accordingly,
the demurrer is SUSTAINED with 20 days leave to amend.